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Case Number: 26TRCP00162 Hearing Date: September 15, 2026 Dept: B

Moving Parties: Petitioner Rosaline Mills

Responding Party: Respondent City of Inglewood

Motion

for Relief from Government Claim Presentation Requirements

The Court considered the moving and opposition papers.

RULING

The motion and petition are DENIED.

BACKGROUND

On April 23, 2026, petitioner Rosaline Mills filed a petition against City of Inglewood for relief from government claim presentation requirements.

LEGAL

AUTHORITY

Before

a suit for damages may be filed against a public entity, a claimant must present a timely written claim to the public entity and the claim must have been acted upon by the board or deemed rejected. Gov. Code §945.4; Munoz v. State of Cal. (1995) 33 Cal. App. 4th 1767, 1777. A claim relating to a cause of action for injury to person or personal property

must be presented to the public entity not later than six months after the accrual of the cause of action. Gov.

Code §911.2. Munoz, supra, 33 Cal. App. 4th at 1777.

If a

claimant fails to present a claim within the statutory period, he may apply

“within a reasonable time not to exceed one year after the accrual of the cause

of action” to the public entity for leave to present a late claim. Gov. Code §911.4. If the public entity denies leave to present a late claim, a claimant may petition the Court under Government Code §946.6

for relief from the requirements of Government Code §945.4. Munoz, supra, 33 Cal. App. 4th at 1777.

Additionally,

a petition pursuant to Government Code §946.6 must be “filed within six months after the application to the board is denied or deemed to be denied pursuant to Section 911.6.” Gov. Code §946.6(b); see

also City of Los Angeles v. Superior Court (1993) 14 Cal. App. 4th 621,

627. This requirement is mandatory. Lineaweaver v. S. Cal. Rapid Transit Dist. (1983) 139 Cal. App. 3d 738, 741.

If the

§946.6 petition is timely filed, the court may relieve a claimant from the requirements of §945.4 if it makes certain findings, including: (1) the claimant made a timely application to the public entity for leave to present a late claim; (2) the application was denied; and (3) the failure to timely present a claim was the result of mistake, inadvertence, or excusable neglect.

Gov. Code §946.6(c). In

determining whether relief is warranted under Government Code §946.6, the court considers the petition, any affidavits submitted in support of or in opposition

to the petition, and any other evidence presented at the hearing. Gov. Code §946.6(e); Munoz, supra, 33 Cal. App. 4th at 1778.

“The showing required for relief under [§] 946.6

because of mistake, inadvertence, surprise or excusable neglect is the same as

required under [CCP] [§] 473 for relieving a party from a default judgment.” Ebersol v. Cowan (1983) 35 Cal.3d 427, 435.

DISCUSSION

Under Gov. Code §946.6, petitioner Rosaline Mills requests relief from the government claims statute under Gov. Code §945.4 as against City of Inglewood.

Petitioner asserts that she sustained serious injuries on March 1, 2025 due to a hazardous and dangerous sidewalk condition at or near 311 N. La Brea Avenue, in City of Inglewood. She contends that she presented an application for leave to present a late claim to City of Inglewood within one year of the accrual of her cause of action as required by Gov. Code §911.4. The City denied the application on March 20, 2026. Petitioner filed this petition on April 23, 2026, which was within six months of the denial, as required by Gov. Code §946.6(b). She argues that her failure to timely present a claim to City of Inglewood was through mistake, inadvertence, surprise, or excusable neglect from "reasonable confusion as to the identity of the responsible public entity." She also argues that the City will suffer no prejudice from the granting of relief.

Petitioner's counsel Sepideh Hersel states in their declaration that counsel was first contacted by petitioner in April 2025, approximately one month after the March 1, 2025 incident. Upon being retained, counsel's office "acted promptly and diligently" and investigated the facts, collected relevant documentation, interviewed petitioner, reviewed photographs of the incident location, and prepared government claims for filing. Counsel states that based on their initial investigation, they determined that the incident location could fall within the jurisdiction of either the City of Los Angeles or the County of Los Angeles as La Brea Avenue is a major thoroughfare that traverses multiple municipal boundaries and jurisdictions, "creating reasonable uncertainty as to which public entity owned and maintained the particular stretch of sidewalk" where petitioner fell. Counsel states that on August 26, 2025, within the six-month claim presentation deadline under Gov. Code §911.2, petitioner served government claims with both the City and County of Los Angeles. On October 22, 2025, the County of Los Angeles issued a written notice rejecting the claim and stating that the County does not own or maintain the subject property. On October 28, the City of Los Angeles also rejected the claim stating that it does not own or maintain the subject sidewalk. Following the rejection letters, counsel's office conducted further investigation, including review of jurisdictional maps and consultation with city record, and determined that the City of Inglewood owned and maintained the property. Petitioner then submitted an application for leave to present a late claim on January 27,

2026, which was rejected on March 29.

Counsel states in their declaration that the incident location is in close proximity to jurisdictional boundaries, and photographs of the site show utility infrastructure including a “Bell System” utility cover, which “further contributed to the reasonable uncertainty regarding governmental responsibility for sidewalk maintenance at that specific location.” See Sepideh Hersel decl.

In opposition, respondent City of Inglewood argues that petitioner has not established that her failure to present a timely claim was through “mistake, inadvertence, surprise, or excusable neglect.” City contends that based on the claim for damages, petitioner lives in Inglewood and she was allegedly injured a little over a mile away from her home. City notes that a photograph submitted with the claim for damages indicates in the background signage that reads “Inglewood.” City argues that “[t]his is not a case where it was difficult to determine the proper entity because city boundaries are easily determined by any number of means such as consulting with a map, looking at the street signs in the vicinity, or by conducting an internet search.” City also notes that the claims for damages presented to the City and County of Los Angeles state that she was “lawfully walking along the public sidewalk located at or near 311 N. La Brea Avenue, Inglewood, California 90302.” Respondent also argues that it is unclear how the “Bell System” could have contributed to uncertainty over where the incident took place. Respondent further notes that petitioner offers no explanation for a three-month gap between being told in writing that Inglewood was a distinct public entity and actually presenting a claim to it. Moreover, respondent contends, it is not required to show prejudice. See Derald Brenneman decl.

There is no reply.

The Court finds that although the §946.6 petition was timely filed, petitioner has not met her burden of showing that the failure to timely present a claim to City of Inglewood was the result of mistake, inadvertence, or excusable neglect. “Relief on grounds of mistake, inadvertence, surprise or excusable neglect is available only on a showing that the claimant’s failure to timely present a claim was reasonable when tested by the objective ‘reasonably prudent person’ standard.” Dep’t of Water

& Power v. Superior Court (2000) 82 Cal.App.4th 1288, 1293. It was objectively unreasonable for petitioner to not have timely discovered that the City of Inglewood was the proper entity with which to file a government claim. The claims presented to the City and County of Los Angeles state that plaintiff was injured in Inglewood. As pointed out by respondent, a simple search indicates that the property address is in the City of Inglewood. Petitioner's counsel's purported "jurisdictional confusion" was not reasonable, especially in light of the fact that petitioner lives in Inglewood. Even if there was reasonable confusion, it was possible to file a claim in multiple locations, which petitioner did when she filed with the City and County of Los Angeles. Nothing prevented her from filing a third copy of the claim with the City of Inglewood.

ORDER

The motion and petition are
DENIED.

Respondent City of
Inglewood is ordered to give notice of ruling.